COMPLIANCE PACK — CONDENSED

What you must actually have

The 25-page pack, reduced to the essentials. Everything here is a template, checklist or register — **not legal advice**. The flag state, the coastal state and your insurer each have a veto, so verify locally every season.

> **Do these eleven first.** Numbers 1 to 4 are what actually stop you trading.

- [ ] **1. Decide, per trip, who contracts with the guest** — you as operator, you as organiser, or the licensed operator as carrier. Write it in the trip file.
- [ ] **2. Confirm whose insurance responds** if a guest is injured on board — named in the policy, not assumed.
- [ ] **3. Sort the charter licence for the country you actually sail in.** Thailand: a licensed local operator with a Thai-registered vessel, or you do not charter there.
- [ ] **4. Check the vessel policy names commercial charter use** and covers every sea area on the calendar.
- [ ] **5. Check the captain's file is in date** — licence, STCW, medical, radio certificate.
- [ ] **6. Fix the Terms:** state a *minimum* guest insurance, whether the trip is a package, and the ADR route.
- [ ] **7. Start using four guest forms:** information, health declaration, risk acknowledgement, media consent.
- [ ] **8. Print the safety briefing sheet and the risk assessment** for every departure.
- [ ] **9. Put the advertising-disclosure duty in every host and creator agreement** (see page 3).
- [ ] **10. Keep the signed originals.** A waiver that exists but was never signed is worth nothing.
- [ ] **11. Re-verify every country row before the first departure** of the season.

The essentials

Ten areas, and what each one needs

AREA	YOU MUST HOLD, OR DO	DONE
1 · Operating model	A written decision per trip on who contracts with the guest, and therefore whose licence, insurance and data-controller role applies.	
2 · Customer documents	Terms, Privacy Policy, cookie notice, cancellation policy, complaints/ADR route — each carrying legal name, NIF, address, a minimum insurance requirement, and package status if applicable.	
3 · Guest forms	Booking agreement · guest information form · health declaration · **signed** risk acknowledgement · media consent (opt in/out) · parental consent for under-18s.	
4 · Safety management	Pre-departure briefing sheet · emergency action cards (MOB, fire, medical, abandon ship, weather, flooding) · risk assessment register · daily checks · incident *and near-miss* log.	
5 · Vessel documents	Certificate of registry · charter licence · seaworthiness/coding · tonnage · ship radio licence · insurance certificate · LSA/FFE servicing · crew list · charter agreement · transit log where required.	
6 · Insurance	Hull & machinery · P&I / third-party · **commercial charter use named** · geographic limits covering every sea area · crew cover · water-sports and tender liability · professional indemnity for the organising side.	
7 · Environment	MARPOL discipline: nothing over the side, garbage sorted and landed, shore pump-out for sewage, correct fuel, no anchoring in protected zones. Garbage log kept.	
8 · Crew	Captain 200GT · STCW certificate of competency · STCW basic safety training · medical fitness in date · GMDSS/SRC · first aid · employment status decided in writing.	
9 · Hosts & creators	Written agreement: free berth, minimum seats sold, the host's own fee kept in full, deliverables, cancellation, image rights, conduct. Plus advertising disclosure. Plus the code of conduct applied to hosts too.	
10 · Records	Renewal calendar · document register (where each original lives) · per-departure trip file · GDPR records of processing · annual review before the season.	

> **Two documents decide most disputes.** The signed **risk acknowledgement** (the guest understood the risks and accepted the skipper's authority) and the **insurance certificate** that actually names commercial charter use. If either is missing or out of date, everything else is decoration.

Where you sail

Country check — verify every row locally

DESTINATION	LICENCE TO CHARTER FOR REWARD	WATCH OUT FOR
Spain — Med & Balearics	Commercial registration plus an operating licence; confirm conditions for a foreign flag.	Posidonia anchoring restrictions; Balearic sustainable-tourism tax.
Greece — Ionian	Greek charter licence and a properly registered professional yacht; charter party filed with the port authority.	Transit log / cruising permit and the annual cruising tax.
Italy — Amalfi & islands	Charter licence and a registered charter vessel; foreign flags need their own authorisation via an agent.	Marine-protected-area anchoring bans.
Portugal — Algarve	Commercial registration and the relevant authorisation for commercial recreational use.	Protected coastal areas; seasonal anchoring restrictions.
Antigua & Barbuda	Charter licence, or the visiting-charter route for foreign yachts.	Clearance in/out, cruising permit, marine-park fees.
Mauritius	Charter licence; confirm the vessel's eligibility and the local agent's role.	Lagoon and reef protection; tourism levy.
Thailand — Phuket & Andaman	**Thai-registered, licensed vessels only.** Commercial charter with a foreign-flagged yacht is generally not permitted — use a licensed local operator.	National-park fees. The guest's contract, invoice and insurance must name the licensed carrier, **not you**.

Four things people forget

- ☐ **Label the advertising.** A free berth given for posts *is* advertising. The host must use the platform's paid-partnership label *and* a written "#ad" a reader sees before engaging. Hidden advertising is an unfair commercial practice.
- ☐ **State a minimum guest insurance** — medical, repatriation, cancellation, personal liability, water sports. "Strongly recommend" is too soft for a commercial charter.
- ☐ **The skipper's authority is absolute**, in writing, including the right to end a guest's trip without refund for unsafe behaviour.
- ☐ **Know who is the carrier.** If a licensed operator runs the boat, their name belongs on the contract, the invoice and the insurance — not yours.

Rhythm

Re-verify the country rows and the insurance **before the first departure**, then **annually**. Update the Terms and Privacy Policy, re-date them on the website, refresh the safety briefing with last season's near misses, and archive the old trip files.

> **Templates and checklists only — not legal advice.** Have the guest-facing documents reviewed by a lawyer qualified in the law you sell under, and confirm every licensing point with the authority named in the full pack. Nothing here substitutes for a valid charter licence, a valid insurance policy, or the rules of the flag and coastal states.